

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 26-02

NANCY PRIOR,

Complainant,

v.

AMOOV GROUP, FREIGHTLEAD LLC.,

AND AIR 7 SEAS TRANSPORT LOGISTICS, INC.

Respondents.

ANSWER TO SECOND AMENDED COMPLAINT

I. Parties and Jurisdiction

1. With respect to paragraph 1 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas Transport Logistics, Inc. ("Air 7 Seas") does not dispute that Nancy Prior is an individual nor does it dispute the address, telephone number and email address of Nancy Prior.

2. With respect to paragraph 2 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas believes to be true that AMOOV Group Limited ("AMOOV") is or was an international freight forwarder and shipping logistics provider and maintains an operational coordination email address at alexandre.auzanet@amoovgroup.com and connect@amoovgroup.com. Respondent, Air 7 Seas does not have information or belief sufficient to accept AMOOV Limited is a parent entity but does believe to be correct the address of AMOOV at Unit 503, 5/F Beverly Commercial Centre, 87-105 Chatham Road South, Tsim Sha Tsui South, Kowloon, Hong Kong. Respondent, Air 7 Seas does not have information sufficient to accept Complainant assertion that AMOOV contracted for AMOOV as the primary freight forwarder responsible for coordinating the international carriage of Complainant shipment from Luxemburg to Fort Lauderdale, Florida, with port of entry at Miami, Florida. Respondent, Air 7 Seas does believe that Complainant's shipment from Luxembourg to Fort Lauderdale, Florida with Port of entry at Miami, Florida did occur. Respondent, Air 7 Seas answers as above because it has never received copies of the documents issued by AMOOV and admits the facts set forth therein.

3. With respect to paragraph 3 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas believes the allegations of Complainant to be correct as well as the facts set forth concerning FreightLead LLC ("FreightLead") by Complainant and as such admits the facts set forth therein.

4. With respect to paragraph 4 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas admits the allegations set forth in that paragraph regarding Respondent, Air 7 Seas. Respondent, Air 7 Seas answers also that with respect to the Second Amended Complaint filed herein by Nancy Prior, that Respondent, Air 7 Seas was not acting as an NVOCC at any time nor as a Freight Forwarder at any time or as an OTI at any time during the ocean transportation or at

any time otherwise with respect to Complainant's goods or the services rendered by Respondent, Air 7 Seas.

5. With respect to paragraph 5 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas does not believe Complainant's position to be correct that "the Commission has personal and subject-matter jurisdiction over this dispute pursuant to 46 U.S.C. §§ 41102(c), 41301, and 41305, as well as 46 C.F.R. Part 502" because Complainant is and will be unable to state a cause of action or a claim which will stand on its own or set forth facts to establish a successful claim for reparations under 41102(c) nor under 46 C.F.R. Section 545.5.

Importantly, Respondent, Air 7 Seas answers and alleges:

1. It was not named by AMOOV on the Bill of Lading in any capacity concerning transportation of Complainant's goods by ocean and did participate in any respect of the transportation or delivery of the goods to Miami, Florida.
2. Respondent, Air 7 Seas only became involved after receiving a request from AMOOV to secure a warehouse for Complainant's goods and to inform AMOOV of the Terms the warehouse was requesting. Respondent, Air 7 Seas did in fact secure the warehouse and report to AMOOV the location where the goods would be stored – Lifestyle Storage and Moving ("the Lifestyle warehouse").
3. Any services rendered to Complainant occurred only after the goods had arrived and were delivered to the Lifestyle warehouse.

As such, Respondent, Air 7 Seas respectfully denies Complainant's allegations and positions. Respondent, Air 7 Seas admits it is appropriately and properly licensed but as set forth above was not involved with the ocean transportation of Complainant's goods or any maritime services to Complainant in any way whatsoever.

II. Factual Background

A. The Contract and the Shipment.

6. With respect to paragraph 6 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas has not sufficient information due to Respondent, Air 7 Seas never being included on any shipping document and was not privy to any contract or formation of any contract entered into by Complainant with AMOOV for transportation of Complainant's household goods from Luxembourg to Fort Lauderdale, Florida. Further, and as noted above, Respondent, Air 7 Seas was not informed of and therefore not aware of the financial arrangements existing between AMOOV and Complainant.

7. With respect to paragraph 7 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas has not information sufficient to know what occurred between AMOOV and Complainant as Respondent, Air 7 Seas was not privy to agreements between AMOOV and Complainant nor AMOOV and FreightLead. As such, Respondent, Air 7 Seas had no information whether:

(a) AMOOV had informed Complainant that delivery would take approximately five weeks from collection of the goods in Luxembourg nor;

(b) when Complainant first received the vessel and shipment information regarding her cargo from FreightLead (alleged December 23, 2025) nor;

(c) the allegation that FreightLead transmitted the vessel and shipment information for Complainant's cargo to Complainant the day after Complainant filed her formal complaint with the Federal Maritime Commission nor;

(d) What the transmitted vessel and shipment information identified.

(e) Respondent, Air 7 Seas does have information that Rob Prior contacted Respondent, Air 7 Seas on or about November 7, 2025 and gave Respondent, Air 7 Seas the physical address for the delivery of Complainant's goods but no contact information for either Rob Prior or Complainant, Nancy Prior. AMOOV in that communication indicated to Respondent, Air 7 Seas to advise the scheduled dates for potential delivery of Complainant's goods. Then, on or about November 13, 2025, Rob Prior contacted Respondent, Air 7 Seas speaking to Nelson whereas Nelson indicated that AMOOV had nominated Respondent, Air 7 Seas as the "delivery agent" for Complainant's goods.

B. Searching for the Cargo

8. With respect to paragraph 8 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas was not made privy and did not have information from AMOOV regarding cargo location until after Respondent, Air 7 Seas had secured warehouse space and further had no information about invoice redactions or that Complainant and her representative actually visited FreightLead's office on November 13, 2025 and on that basis, Respondent, Air 7 Seas denies the allegations set forth by Complainant therein.

9. With respect to paragraph 9 of Complainant's Second Amended Complaint Respondent, Air 7 Seas had not sufficient information to have knowledge concerning AMOOV's operational staff or either of the dates mentioned in Complainant's Second Amended Complaint or that on January 16th AMOOV announced insolvency proceedings in Hong Kong and on that basis, Respondent, Air 7 Seas denies Complainant's allegations therein. Respondent, Air 7 Seas admits it later became aware that AMOOV announced insolvency proceedings in Hong Kong.

C. Visit to FreightLead's Office and Contact with Air 7 Seas

10. With respect to paragraph 10 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas had not sufficient information of whether Complainant had a representative named David Thomas Driscoll or that David Thomas Driscoll visited FreightLead's office or whether a FreightLead staff member referred Complainant's representative, David Thomas Driscoll to "Nelson" at Respondent, Air 7 Seas or any part of information concerning the shipment or whether permission occurred or was needed to photograph a note that had or had not Respondent, Air 7 Seas name on it or Nelson's contact information nor whether FreightLead provided shipping documents and on this basis, Respondent, Air 7 Seas denies the assertions in their entirety contained in that paragraph.

11. With respect to paragraph 11 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas believes and states on that belief that Complainant or Robert Prior reached out to a person at Respondent, Air 7 Seas by telephone or email requesting release of the cargo and production of the shipping information. Respondent, Air 7 Seas denies any implication that such communications establish liability or wrongful conduct.

D. Air 7 Seas Payment Demand

12. With respect to paragraph 12 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas admits it delivered an invoice to Complainant for services provided by Respondent which reflected monies owed to Respondent, Air 7 Seas by Complainant. Respondent, Air 7 Seas admits there was an addition of \$65 from one invoice to another because Respondent, Air 7 Seas placed an administration fee of \$65. The charges set forth on the invoice related to its services provided to Complainant including post-arrival coordination, warehouse related handling and release related services and communications. Respondent, Air 7 Seas on this basis denies the allegations set forth by Complainant in paragraph 12.

E. The FMC Complaint and Release of the Cargo

13. With respect to paragraph 13 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas, on information and belief acknowledges Complainant filed a formal complaint with the Federal Maritime Commission. Respondent, Air 7 Seas denies the allegation in paragraph 13 based on Complainant's assumption of fact not previously addressed in this Complaint which was the party who directed the cargo hold. Respondent, Air 7 Seas states any withhold of Complainant's goods would have occurred at the direction of AMOOV.

14. With respect to paragraph 14 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas admits Complainant's cargo was released upon Complainant's payment to the Lifestyle warehouse of \$6,080 but denies that was the total amount owed by Complainant. Respondent, Air 7 Seas states no payment was made to Respondent, Air 7 Seas by Complainant nor was the demanded sum of \$22,580.00 paid by Complainant to the Lifestyle warehouse or to Respondent, Air 7 Seas.

F. Damages

15. With respect to paragraph 15 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas states on information and belief that Complainant's mattress was purchased in Europe at a cost of 5,050.00 Euros or that it had been folded in half during storage or handling, that it is destroyed or that that damage has anything to do with Complainant's Complaint being brought properly before the Federal Maritime Commission with respect to the Complainant's choice of Respondents to pursue in this matter.

16. With respect to paragraph 16 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas denies that any of its actions had any bearing upon Complainant's choices with respect to payments which Complainant withheld, if any, had only to do if such occurred as a result of Complainant's failure to pay storage charges and other incidentals recently provided in discovery. Respondent, Air 7 Seas denies it had any involvement with moving, delivery, deposit, gratuity, a mattress, a couch, any other additional household items or the sum of \$13,140.32 or \$5,050.00 Euro or any amount whatsoever. None of the damages claimed with respect purportedly possibly to a mattress as none of those issues relate to services provided by Respondent, Air 7 Seas, which were solely and exclusively to arrange for a warehouse. Respondent, Air 7 Seas did undertake amelioration to allow for delivery of the goods by the

Lifestyle warehouse and its customer, the Complainant. Respondent, Air 7 Seas did not perform the warehousing services, the Lifestyle warehouse did.

III. Claims

17. With respect to paragraph 17 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas is not a part nor did it play a part in any of the conclusionary allegations of Complainant with respect to Element One as Respondent, Air 7 Seas merely arranged for the Lifestyle warehouse. Respondent, Air 7 Seas did not participate in the receiving, handling, storing, or delivering of Complainant's property as set forth in paragraph 17 on that basis denies every allegation contained in paragraph 17. Respondent, Air 7 Seas states its activities were limited to conversations as a go-between involving Complainant or Robert Prior and the Lifestyle warehouse. The services provided by the Lifestyle warehouse to Complainant were exclusively for the benefit of Complainant.

18. With respect to paragraph 18 of Complainant's Second Amended Complaint, Respondent, Air 7 Seas denies the allegations set forth in paragraph 18 as to its participation being services which were normal, customary, and continuous as that threshold pertains to a proper complaint before the Federal Maritime Commission. Just as in paragraph 17 above, Complainant's allegations herein are conclusionary with no explanation as to why Respondent, Air 7 Seas is included in this action at all and under what section any company would be the subject of a Federal Maritime Commission proceeding where that company only arranged for a warehouse and was never paid by either the NVOCC or the NVOCC's customer, the Complainant herein. Respondent's services have nothing to do with the maritime portion of the transactions complained of by Complainant herein. All of Respondent, Air 7 Seas services occurred after arrival of the cargo at the Port of Miami and concerning unresolved payment issues between the parties.

19. With respect to paragraph 19 of Complainant's Second Amended Complaint, as to the allegations of Element Three, again, Complainant admits that all of the matters of which Complainant complained occurred after delivery and therefore are not maritime related. In addition, Respondent, Air 7 Seas only (1) confirmed receipt and (2) arranged for storage. Those are customary services for a designated delivery agent all occurring after the cargo has landed and on that basis denies in their entirety the allegations set forth against Respondent, Air 7 Seas as both incorrect and untrue as well as non-maritime related.

20. With respect to paragraph 20 of Complainant's Second Amended Complaint, as to the allegations of Element Four and Complainant's claims that the practices were unjust and unreasonable, Respondent, Air 7 Seas denies those allegations in their entirety. Respondent, Air 7 Seas denies Complainant's household goods were held by Respondent, Air 7 Seas but by AMOOV because AMOOV had not been paid. In addition, the Lifestyle warehouse supported a hold because the Lifestyle warehouse had not been paid by Complainant. Respondent, Air 7 Seas further denies it wrongfully issued an invoice for \$22,580.00 to Complainant as a condition of release. The invoice was issued to Complainant because the money was owed for warehousing and particularly for the amount of time and number of people who Respondent, Air 7 Seas had responding to AMOOV, responding to the Lifestyle warehouse and responding to Complainant or Rob Prior. Importantly though, Complainant is attempting by these claims to state a claim that will stand on its own. Respondent, Air 7 Seas asserts that as to its participation

and the fact that it was all post-arrival does not as a matter of law render this Complaint against Respondent, Air 7 Seas standalone as required under §41102(c).

Complainant alleges in her Second Amended Complaint that the claims for \$22,580.00 have never been supported by documentation. In Respondent, Air 7 Seas' Reply to Complainant's Motion to Compel Discovery Response RFP No. 5, Respondent had reviewed carefully the amounts set forth earlier when a large part of the \$22,580.00 had been placed by the Lifestyle warehouse for Respondent, Air 7 Seas to pay because the Lifestyle warehouse had not been paid by Complainant in full and the Lifestyle warehouse was making demand upon Respondent, Air 7 Seas. The careful review indicated though where Respondent, Air 7 Seas had paid for storage charges and other miscellaneous charges to the Lifestyle warehouse resulting in an adjustment to \$8,380.00 which was delivered to Complainant in Respondent, Air 7 Seas Reply to Complainant's Motion to Compel Discovery Response RFP No. 5 at II. paragraph 4. Respondent, Air 7 Seas remains hopeful the Lifestyle warehouse will continue to refrain from further demand. Respondent, Air 7 Seas was not authorized to release Complainant's goods.

21. With respect to paragraph 21, Element Five, of Complainant's Second Amended Complaint, Respondent, Air 7 Seas refutes in every respect the allegations set forth in this paragraph and on that basis denies proximate cause based on its capacity as arranging for a delivery agent as well as securing warehousing and other miscellaneous go between tasks and on that basis, further denies Complainant's entitlement to the sum of \$13,140.32USD and the additional sum of 5,050.00 Euros in those sums or any sums whatsoever.

IV. AFFIRMATIVE DEFENSES

Without assuming any burden not otherwise imposed by law, Respondent, Air 7 Seas asserts the following affirmative defenses:

- A. **Fails to state a standalone claim.** The Second Amended Complaint fails to state a standalone claim upon which relief can be granted against Respondent, Air 7 Seas;
- B. **Lack of causation.** Complainant fails to allege and/or provide any evidence damages were proximately caused by any unlawful act or omission of Respondent, Air 7 Seas;
- C. **Jurisdictional limitation.** To the extent the Second Amended Complaint seeks award of recovery from the Federal Maritime Commission for any disputes or damages unrelated to maritime including services rendered post-arrival, then those requests by Complainant, Respondent, Air 7 Seas requests the Federal Maritime Commission disallow them in their entirety as not properly jurisdictional for the Federal Maritime Commission.
- D. **Good-faith conduct.** Respondent, Air 7 Seas at all times acted in good faith to ameliorate in the best interest of Complainant issues arising from AMOOV's business downfall as well as in the best interest of the Lifestyle warehouse and AMOOV to resolve the issues existing among them including storage, payment and release issues relating to the cargo.
- E. **Intervening conduct of others.** Any alleged delay, loss, or damage was caused in whole or in part by AMOOV, the Lifestyle warehouse and Complainant, all of which are outside

of Respondent, Air 7 Seas' control, and any of those or any alleged delay, loss or damage is not attributable to Respondent, Air 7 Seas.

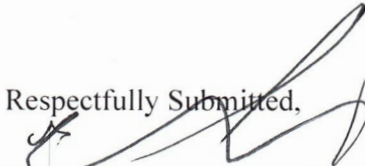
- F. **Failure to mitigate and speculative damages.** Complainant's damages are overstated, unsupported, or otherwise unrecoverable and not properly before the Federal Maritime Commission as there is no proof for Complainant as to where or how the damages, if any, occurred. In addition, values are questioned as appears from inapposite filings to Customs as opposed to stated values set forth on the Packing List.
- G. **Reservation of rights.** Respondent, Air 7 Seas reserves the right to assert additional defenses as discovery proceeds.

V. Prayer for Relief

WHEREFORE, Respondent, Air 7 Seas respectfully requests the Federal Maritime Commission enter an order:

- a) Finding the Complainant's action before the Federal Maritime Commission was wrongfully filed and that the matter does not fit the jurisdictional requirements of the FMC to spend any further time and accordingly dismiss Complainant's Complaint in its entirety as not standalone or as otherwise provided by law pursuant to 46 U.S.C. §41102(c) and 46 C.F.R. §454.4
- b) Ordering at Section b Respondent, Air 7 Seas pay nothing to Complainant per their request of the sum of \$13,140.32USD and the additional sum of 5,050.00 Euros or any sums whatsoever pursuant to 46 U.S.C. §41305(a) and (b)
- c) Ordering at section c that Respondent, Air 7 Seas pay nothing to Complainant by Complainant's request pursuant to 46 U.S.C. §41305(c).
- d) Ordering at section d that Respondent, Air 7 Seas pay nothing to Complainant by Complainant's request pursuant to 46 U.S.C. §41305(e).
- e) Ordering no hearing be necessary in this matter and that the matter not be heard in Fort Lauderdale, Florida but rather Santa Clara, California or at such other location including Washington, DC or by video conference as the Administrative Law Judge deems appropriate.
- f) Granting any further lawful relief the Federal Maritime Commission deems just and proper.

Respectfully Submitted,


Countryman & McDaniel LLP
By: Byron Edward Countryman
Date: July 28, 2026

Name and signature of Respondent, Air 7 Seas Transport Logistics Inc. by Surya Dhamija

By [Signature]
CEO Surya Dhamija

1815 Houret Ct, Milpitas, California 95035, (408) 957-8787, claims@air7seas.us

[Respondent's address, telephone number, and email address]

[Signature]
Law Offices of
Countryman & McDaniel LLP By: Byron Edward Countryman
[Signature of attorney or representative of respondent]

5016 Chesobro Road, Suite 105, Agoura Hills, CA 91301

[Attorney's or representative's address, telephone number, and email address]

Date July 28, 2026

Verification

SEE ATTACHMENT
FOR NOTORIZATION

Hemu Patel,
Notary Public
28 JUL 2026

State of California, County of Santa Clara, ss: _____, _____ being first duly sworn on oath
deposes and says that he

Surya Dhamija is the CEO at Air 7 Seas Transport Logistics, Inc.

[The Respondent, or, if a firm, association, or corporation, state the capacity of the affiant]

and is the person who signed the foregoing Answer to Second Amended Complaint; that he has read the Answer to Second Amended Complaint and that the facts stated therein, upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of _____, County of _____ this _____ day _____, 20____.

[Seal] _____
(Notary Public)
My Commission expires _____.

Certificate of Service

[See §502.114.]

I hereby certify that on this ____ day of _____, 2026, I served the foregoing Complainant, Nancy Prior with Respondent's Answer to Second Amended Complaint filed on July 28, 2026 in Docket No. 26-02 by electronic mail upon:

Nancy Prior
Email: nancyprior@gmail.com

[Plus any counsel or other parties as required by the Commission's rules]

Surya Dhamija
CEO
Air 7 Seas Transport Logistics, Inc.

CALIFORNIA JURAT WITH AFFIANT STATEMENT

GOVERNMENT CODE § 8202

- ☒ See Attached Document (Notary to cross out lines 1-6 below)
☐ See Statement Below (Lines 1-6 to be completed only by document signer[s], not Notary)

1 _____
 2 _____
 3 _____
 4 _____
 5 _____
 6 _____

Signature of Document Signer No. 1 Signature of Document Signer No. 2 (if any)

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California

County of Santa Clara

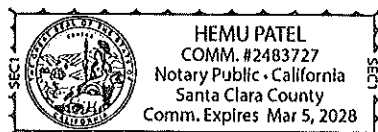
Subscribed and sworn to (or affirmed) before me

on this 28 day of July, 2026,
 by Date Month Year

(1) Surya Dhamija

(and (2) _____),
 Name(s) of Signer(s)

proved to me on the basis of satisfactory evidence to be the person(s) who appeared before me.



Place Notary Seal and/or Stamp Above

Signature H Patel
 Signature of Notary Public

OPTIONAL

Completing this information can deter alteration of the document or fraudulent reattachment of this form to an unintended document.

Description of Attached Document

Title or Type of Document: Answer to second Amended complaint

Document Date: July 28, 2026 Number of Pages: 8 + 1

Signer(s) Other Than Named Above: None